

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anna Steel	Team: Team # 8	CCRB Case #: 200903808	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 02/18/2009 3:03 PM	Location of Incident: West 8th Street and Neptune Avenue	18 Mo. SOL 8/18/2010	Precinct: 60		
Date/Time CV Reported Thu, 03/12/2009 2:15 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 03/12/2009 2:15 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Frederick Drone	01364	933760	060 PCT
2. Officers			060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Luke Anderson	00000	915045	060 PCT
2. POM Sean Feliciano	16483	933773	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frederick Drone	Force: PO Frederick Drone used physical force against § 87(2)(b)	A . Exonerated
B . POM Frederick Drone	Abuse: PO Frederick Drone threatened to arrest § 87(2)(b)	B . Exonerated
C . POM Frederick Drone	Discourtesy: PO Frederick Drone spoke obscenely to § 87(2)(b)	C . Unfounded
D . Officers	Force: Officers used physical force against § 87(2)(b)	D . Exonerated
E . Officers	Discourtesy: Officers spoke obscenely to § 87(2)(b)	E . Unfounded

Case Summary

§ 87(2)(b) filed a complaint with the CCRB in person on March 12, 2009 (encl. 3a – 3b).

On February 18, 2009, at about 3:00 PM, § 87(2)(b) went to the Coney Island DMV, located at 2875 West 8th Street in Brooklyn, with his girlfriend, § 87(2)(b). They encountered PO Frederick Drone from the 60th Precinct. The following allegations resulted:

- **Allegation A – Force:** PO Frederick Drone used physical force against § 87(2)(b).
- **Allegation D – Force:** Officers used physical force against § 87(2)(b).
 - § 87(2)(g) it is recommended that Allegations A and D be closed, **Exonerated**.
- **Allegation B – Threat of Arrest:** PO Frederick Drone threatened to arrest § 87(2)(b).
§ 87(2)(g) it is recommended that Allegation B be closed, **Exonerated**.
- **Allegation C – Discourtesy:** PO Frederick Drone spoke obscenely to § 87(2)(b).
- **Allegation E – Discourtesy:** Officers spoke obscenely to § 87(2)(b).
 - § 87(2)(g) it is recommended that Allegations C and E be closed, **Unfounded**.

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b)-old a white male who is § 87(2)(b), and has blonde hair and brown eyes.

§ 87(2)(b) filed a notice of claim on March 5, 2009 (encl. 27a – 27b) and was interviewed at the CCRB on March 12, 2009 (encl. 4a – 4d). § 87(2)(g) He stated that on February 18, 2009, at about 3:00 PM, he went to the Coney Island DMV, located at 2875 West 8th Street in Brooklyn, where he met his girlfriend, § 87(2)(b). He had medical records pertaining to two prior vehicle accidents. He needed to know how to process these documents for his disability claim. § 87(2)(b) left the DMV when told he had to mail the records. An officer, identified through the investigation as PO Frederick Drone from the 60th Precinct, was near the exit. § 87(2)(b) said to PO Drone, “Officer, excuse me. Could you help me? I have these documents. Could you tell me what should I do with them?” PO Drone said he did not know and told him to leave. § 87(2)(b) refused. PO Drone told him to leave several times and pushed § 87(2)(b) twice on the chest (**Allegation A**) when he refused. § 87(2)(b) first claimed PO Drone said he would arrest him if he did not leave the DMV (**Allegation B**). He later quoted PO Drone as saying, “Get the fuck out of here or I’m going to arrest you right now.”

§ 87(2)(b) and § 87(2)(b) exited the DMV and began walking away. PO Drone approached him from behind, tripped him with one of his legs to bring him to the ground, and then began pulling his arms behind his back (**Within Allegation A**). § 87(2)(b) screamed he was

in pain, but denied resisting. PO Drone told him to “shut the fuck up” (**Allegation C**). § 87(2)(b) jumped on PO Drone’s back. About ten officers, whom the investigation did not identify and § 87(2)(b) could not describe, responded to the scene and kicked and punched him on his legs and torso (**Allegation D**). He did not specify how many times he was struck. All the officers allegedly told him, “Shut the fuck up” (**Allegation E**). § 87(2)(b) and § 87(2)(b) were arrested and brought to the 60th Precinct. § 87(2)(b) asked an officer, whom he could not describe, why he was being arrested and was told to ‘shut the fuck up’ (**Within Allegation E**). As a result of his arrest, § 87(2)(b) was charged with § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

He did not explain why he did not immediately seek medical treatment. He claimed in his interview that x-rays showed his shoulder was dislocated (encl. 4a – 4b). Medical records show that his shoulder was not dislocated (encl. 19a – 19b). He did not sustain any other injuries as a result of the incident.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) -old white female who is § 87(2)(b), and has brown hair and gray eyes.

§ 87(2)(b) gave a telephone statement to the CCRB on March 31, 2009 (encl. 6) and was interviewed at the CCRB on April 8, 2009 (encl. 7a – 7d), at which time she provided a statement

§ 87(2)(g)

She did not mention PO Drone cursing at § 87(2)(b) or threatening him with arrest. Once the struggle between PO Drone and § 87(2)(b) ensued, § 87(2)(b) kneeled between them and tried to hold PO Drone away from § 87(2)(b) with her right forearm. When PO Drone turned to face her, she scratched him. Officers responded to the scene, three of whom pulled § 87(2)(b) away from PO Drone and handcuffed her. She was arrested and brought to the 60th Precinct stationhouse with § 87(2)(b). As a result of her arrest, she was charged with § 87(2)(a) 160.50

Witnesses: § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) gave a telephone statement to the CCRB on May 5, 2009 (encl. 10). § 87(2)(b) provided a telephone statement on May 5, 2009 (encl. 9). § 87(2)(b) stated that he saw § 87(2)(b) and § 87(2)(b) arguing inside the DMV. PO Drone told them to leave. § 87(2)(b) did not see them arguing, but did see PO Drone push § 87(2)(b) on his chest towards the exit. § 87(2)(b) could not overhear what they were saying to one another. § 87(2)(b) said that PO Drone exited the DMV and told them to leave when they continued to argue in front of the DMV. They refused and began cursing at PO Drone. § 87(2)(b) never heard PO Drone direct profanity towards them or use force against them. § 87(2)(b) suddenly smacked PO Drone, knocking his glasses off of his face. PO Drone tried to handcuff § 87(2)(b) who began wrestling with him. § 87(2)(b) called 911 and officers responded to the scene. The officers placed § 87(2)(b) on the ground and handcuffed them. They did not use any additional force against him. § 87(2)(b) never heard any officers curse at § 87(2)(b). § 87(2)(b) did not witness what occurred outside the DMV.

NYPD Statement(s):

Subject Officer: PO FREDERICK DRONE

- PO Frederick Drone is a § 87(2)(b) -old white male who is § 87(2)(b), and has brown hair and hazel eyes.

- *On the day of the incident, PO Drone was assigned to a foot post inside the DMV and worked from 3:00 PM to 11:35 PM in uniform without a partner.*

CCRB Testimony

PO Drone was interviewed at the CCRB on December 2, 2009 (encl. 14a – 14b). He stated that on February 18, 2009, at about 2:50 PM, he was stationed inside the DMV and saw a male and female, later identified through their arrests as § 87(2)(b) and § 87(2)(b) arguing in the middle of the DMV, which was crowded. PO Drone approached them and asked what was going on. PO Drone told them that they were creating a scene and asked § 87(2)(b) to leave. He cursed and shouted at PO Drone. PO Drone did not remember threatening to arrest § 87(2)(b) at this time. He never told § 87(2)(b) to ‘get the fuck out of here’ and never directed profanity towards him. § 87(2)(b) exited the DMV, but stood three feet from the entrance and shouted obscenities towards PO Drone. PO Drone exited the DMV, followed by § 87(2)(b) and told § 87(2)(b) that he had to leave the vicinity of the DMV. When § 87(2)(b) did not comply, PO Drone pushed him slightly on his right shoulder and again told him to leave. He jerked his shoulder away from PO Drone, who then pushed him again. § 87(2)(b) half lunged towards PO Drone with his fists clenched and raised in front of him, shouting, “Get off of me!”

PO Drone said, “Okay. You are now under arrest.” PO Drone grabbed his arms and tried to pull them behind his back. § 87(2)(b) refused to give up his arms, flailed his body back and forth, jerked his arms towards his chest and thrust his elbows back towards PO Drone. One of these blows collided with PO Drone’s face, knocking his glasses to the ground. It was very difficult to maintain any sort of control of § 87(2)(b) as he was about 6’4” tall and weighed about 220 pounds. § 87(2)(b) began pulling on PO Drone’s shirt and shouted at him. PO Drone ordered her to get off of him and step aside, but she did not comply. PO Drone eventually pulled § 87(2)(b) to the ground, where he landed on his back. PO Drone straddled him, grasped his arms, and tried to handcuff him. § 87(2)(b) threw her body onto § 87(2)(b) completely covering his hands and torso. Several civilians intervened and pulled her off of § 87(2)(b). She then grasped PO Drone’s handcuffs, which they pulled back and forth on for a brief period of time. Additional officers responded to the scene. Officers pulled § 87(2)(b) away from § 87(2)(b) and handcuffed her. PO Drone and officers, whom he could not identify, assisted § 87(2)(b) into a standing position and handcuffed him. Officers never punched or kicked him and never told him to ‘shut the fuck up.’ § 87(2)(b) and § 87(2)(b) were escorted to the 60th Precinct stationhouse. While PO Drone was preparing their arrest paperwork, he realized his right ear was bleeding. § 87(2)(b) PO Drone assumed his ear was injured when § 87(2)(b) struck him in the face.

Witness Officer: PO SEAN FELICIANO

- *PO Feliciano is a § 87(2)(b)-old Hispanic male who is § 87(2)(b) and has brown hair and brown eyes.*
- *On the day of the incident, PO Feliciano was assigned to operation impact and worked from 1:00 PM to 9:35 PM in uniform.*

CCRB Testimony

PO Feliciano was interviewed at the CCRB on November 19, 2009 (encl. 17a – 17b). On February 18, 2009, at about 3:00 PM, PO Feliciano was in the 60th Precinct stationhouse when he heard a request for assistance originating at West 8th Street and Neptune Avenue, just down the block from the precinct. PO Feliciano responded to the scene and saw PO Drone and additional officers, whom he could not identify, struggling to handcuff § 87(2)(b) and § 87(2)(b). PO Drone’s glasses were lying on the ground. § 87(2)(b) and § 87(2)(b) resisted

their arrest by pushing and shoving the officers, but were eventually handcuffed. PO Feliciano did not assist in handcuffing them and never used any force against them. PO Feliciano never saw any officers punch or kick § 87(2)(b). He never heard any officers tell him to ‘shut the fuck up.’

Medical Records

§ 87(2)(a) PHL § 18(6)

NYPD Document(s)

Command Log

- According to the command log (encl. 23), § 87(2)(b) s physical condition was good.

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming police brutality and assault, violation of his civil rights, false arrest, malicious prosecution, false imprisonment, and negligence. He is seeking 2.5 million as redress (encl. 27a – 27b). As of the date of this report, a 50H hearing regarding this claim has not been held (encl. 28a – 28m).

Civilian(s) Criminal History

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officer(s) CCRB History

- PO Drone has been a member of the service for five years. In CCRB case 200505590, a search allegation was substantiated against him and instructions were imposed (encl. 2).

Conclusion

Identification of Subject Officer(s)

- PO Drone admitted to interacting with § 87(2)(b)
- As § 87(2)(b) could not describe the ten officers who used force against him and directed profanity towards him, these allegations have been pleaded against ‘officers’ from the 60th Precinct.

Investigative Findings and Recommendations

Allegation A – Force: PO Frederick Drone used physical force against § 87(2)(b)

Allegation D – Force: Officers used physical force against § 87(2)(b)

The investigation determined that PO Drone pushed § 87(2)(b) when instructing him to leave and later grabbed his arms and pulled him to the ground when attempting to arrest him. While § 87(2)(b) denied resisting arrest, PO Drone said that § 87(2)(b) lunged towards him, flailed his arms, refused to give up his hands, and thrust his elbows in his face, knocking his glasses from his face. § 87(2)(g)

§ 87(2)(b) claimed the officers who responded to the scene repeatedly punched and kicked him. PO Drone stated these officers helped him assist § 87(2)(b) into a standing position and handcuff him, but never punched or kicked him. § 87(2)(b)'s statement was not corroborated by § 87(2)(b) § 87(2)(g)

According to Patrol Guide Section 203-11, an officer may use that amount of force necessary to overcome resistance and effect an arrest (encl. 1). § 87(2)(g)

It is therefore recommended that Allegations A and D be closed, **Exonerated**.

Allegation B – Abuse of Authority: PO Frederick Drone threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged PO Drone threatened to arrest him. PO Drone did not remember issuing such a threat, but both confirmed that he told § 87(2)(b) on multiple occasions to leave the DMV and that § 87(2)(b) repeatedly refused. It is therefore likely that PO Drone informed § 87(2)(b) that he would be arrested if he did not leave the DMV. § 87(2)(g)

It is therefore recommended that Allegation B be closed, **Exonerated**.

Allegation C – Discourtesy: PO Frederick Drone spoke obscenely to § 87(2)(b)

Allegation E – Discourtesy: Officers spoke obscenely to § 87(2)(b)

§ 87(2)(b) asserted PO Drone told him to ‘shut the fuck up.’ He also claimed that the officers who responded to the scene told him to ‘shut the fuck up.’ His claims were not credited by the investigation. First, his testimony was not corroborated by § 87(2)(b) and § 87(2)(b). Secondly, his statements were not consistent. While he first claimed that PO Drone said he would arrest him if he did not leave the DMV, he later quoted PO Drone as saying, “Get the fuck out of here or I’m going to arrest you right now.” PO Drone denied directing profanity towards him and affirmed that no officers cursed at him during the incident. § 87(2)(g)

It is therefore recommended that Allegations C and E be closed, **Unfounded**.

Team: 8

Investigator: _____
Signature Print Date

Supervisor: _____

	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date